
STATUTORY INSTRUMENTS

2008 No. 1277

CONSUMER PROTECTION

**The Consumer Protection from
Unfair Trading Regulations 2008**

Made - - - - 8th May 2008

Coming into force - - 26th May 2008

The Secretary of State, being a Minister designated ^{M1} for the purposes of section 2(2) of the European Communities Act 1972 ^{M2} in relation to measures relating to consumer protection and to the control of advertising, makes the following Regulations in exercise of the powers conferred upon him by section 2(2) of that Act;

In accordance with paragraph 2(2) of Schedule 2 to that Act ^{M3}, a draft of this instrument was laid before Parliament and approved by a resolution of each House of Parliament.

Marginal Citations

- M1** [S.I. 1993/2661](#) and [S.I. 1985/749](#).
M2 1972 c.68; [section 2\(2\)](#) was amended by section 27(1)(a) of the [Legislative and Regulatory Reform Act 2006](#) (c.51).
M3 [Paragraph 2\(2\)](#) of Schedule 2 was amended by section 27(2)(a) of the [Legislative and Regulatory Reform Act 2006](#) (c.51).

^{F1}PART 1

GENERAL

Textual Amendments

- F1** [Regulations](#) revoked (6.4.2025 with transitional provisions and savings in relation to Pt. 4A, which is continued until regulations are made under s. 233 of the revoking Act) by [Digital Markets, Competition and Consumers Act 2024](#) (c. 13), [ss. 251\(1\), 339\(1\)](#) (with [ss. 235, 243, 252](#)); [S.I. 2025/272](#), reg. 2(1)(3)

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[^{F1}][^{F2}PART 4A

CONSUMERS' RIGHTS TO REDRESS

Textual Amendments

F2 Pt. 4A inserted (with application in accordance with reg. 1(3) of the amending S.I.) by [The Consumer Protection \(Amendment\) Regulations 2014 \(S.I. 2014/870\)](#), regs. 1(3), **3**

When does a consumer have a right to redress?

27A.—(1) A consumer has a right to redress under this Part if—

- (a) the conditions in this regulation are met, and
- (b) the conditions (if any) in the following provisions of this Part for the availability of that right are met.

(2) The first condition is that—

- (a) the consumer enters into a contract with a trader for the sale or supply of a product by the trader (a “business to consumer contract”),
- (b) the consumer enters into a contract with a trader for the sale of goods to the trader (a “consumer to business contract”), or
- (c) the consumer makes a payment to a trader for the supply of a product (a “consumer payment”).

(3) Paragraph (2)(b) does not apply if, under the contract, the trader supplies or agrees to supply a product to the consumer as well as paying or agreeing to pay the consumer.

(4) The second condition is that—

- (a) the trader engages in a prohibited practice in relation to the product, or
- (b) in a case where a consumer enters into a business to consumer contract for goods or digital content—
 - (i) a producer engages in a prohibited practice in relation to the goods or digital content, and
 - (ii) when the contract is entered into, the trader is aware of the commercial practice that constitutes the prohibited practice or could reasonably be expected to be aware of it.

(5) In paragraph (4)(b) “producer” means—

- (a) a manufacturer of the goods or digital content,
- (b) an importer of the goods or digital content into the [^{F3}United Kingdom], or
- (c) a person who purports to be a producer by placing the person’s name, trade mark or other distinctive sign on the goods or using it in connection with the digital content,

and includes a producer acting personally or through another person acting in the producer's name or on the producer's behalf.

(6) The third condition is that the prohibited practice is a significant factor in the consumer's decision to enter into the contract or make the payment.

Textual Amendments

- F3** Words in reg. 27A(5)(b) substituted (31.12.2020) by [The Consumer Protection \(Amendment etc.\) \(EU Exit\) Regulations 2018](#) (S.I. 2018/1326), regs. 1(3), **6(2)** (with reg. 11) (as amended by S.I. 2020/1347, regs. 1(3), 4(8)); 2020 c. 1, Sch. 5 para. 1(1)

What does “prohibited practice” mean in this Part?

27B.—^{F4}(1) In this Part “prohibited practice” means a commercial practice involving—

- (a) a misleading action under section 225(4)(a) and section 226 of the Digital Markets, Competition and Consumers Act 2024, or
- (b) an aggressive practice under section 225(4)(a) and section 228 of the Digital Markets, Competition and Consumers Act 2024.]

(2) ^{F5}[Section 225(4)(a) of the Digital Markets, Competition and Consumers Act 2024 applies for the purposes of this Part as if for the definition of “transactional decision” in section 245 of the Digital Markets, Competition and Consumers Act 2024 there were substituted]—

““transactional decision” means any decision taken by a consumer to enter into a contract with a trader for the sale or supply of a product by the trader, or for the sale of goods to the trader, or to make a payment to a trader for the supply of a product.”.

Textual Amendments

- F4** [Reg. 27B\(1\)](#) substituted (6.4.2025) by [The Digital Markets, Competition and Consumers Act 2024 \(Consequential Amendments\) Regulations 2025](#) (S.I. 2025/381), reg. 1(2), **Sch. para. 32(2)**
- F5** Words in [reg. 27B\(2\)](#) substituted (6.4.2025) by [The Digital Markets, Competition and Consumers Act 2024 \(Consequential Amendments\) Regulations 2025](#) (S.I. 2025/381), reg. 1(2), **Sch. para. 32(3)**

What immoveable property is covered by this Part?

27C.—(1) In this Part “product” does not include immoveable property other than a relevant lease.

(2) In this regulation “relevant lease” in relation to England ^{F6}... means—

- (a) an assured tenancy within the meaning of Part 1 of the Housing Act 1988, or
- (b) a lease under which accommodation is let as holiday accommodation.

(3) But none of the following are relevant leases for the purposes of paragraph (2)(a)—

- (a) a lease granted by—
 - (i) a private registered provider of social housing, or
 - (ii) a registered social landlord within the meaning of Part 1 of the Housing Act 1996;
- (b) a lease of a dwelling-house or part of a dwelling-house—
 - (i) granted on payment of a premium calculated by reference to a percentage of the value of the dwelling-house or part or of the cost of providing it, or

- (ii) under which the lessee (or the lessee's personal representatives) will or may be entitled to a sum calculated by reference, directly or indirectly, to the value of the dwelling-house or part;
- (c) a lease granted to a person as a result of the exercise by a local housing authority within the meaning of the Housing Act 1996 of its functions under Part 7 (homelessness) of that Act.
- (4) In this regulation "relevant lease" in relation to Scotland means—
 - (a) an assured tenancy within the meaning of Part 2 of the Housing (Scotland) Act 1988, or
 - (b) a lease under which accommodation is let as holiday accommodation.
- (5) In this regulation "relevant lease" in relation to Northern Ireland means—
 - (a) a private tenancy within the meaning of Article 3 of the Private Tenancies (Northern Ireland) Order 2006, or
 - (b) a lease under which accommodation is let as holiday accommodation.
- (6) But neither of the following are relevant leases for the purposes of paragraph (5)(a)—
 - (a) a lease of a dwelling-house or part of a dwelling-house—
 - (i) granted on payment of a premium calculated by reference to a percentage of the value of the dwelling-house or part or of the cost of providing it, or
 - (ii) under which the lessee (or the lessee's personal representatives) will or may be entitled to a sum calculated by reference, directly or indirectly, to the value of the dwelling-house or part;
 - (b) a private tenancy resulting from the exercise by the Northern Ireland Housing Executive of its functions under Part 2 (homelessness) of the Housing (Northern Ireland) Order 1988.
- ^{F7}(7) In this regulation "relevant lease" in relation to Wales means—
 - (a) a standard contract, within the meaning given by the Renting Homes (Wales) Act 2016 (see section 8 of that Act), or
 - (b) a lease under which accommodation is let as holiday accommodation.
- (8) But none of the following are relevant leases for the purposes of paragraph (7)(a)—
 - (a) an introductory standard contract within the meaning given by the Renting Homes (Wales) Act 2016 (see section 16 of that Act);
 - (b) a prohibited conduct standard contract within the meaning given by the Renting Homes (Wales) Act 2016 (see section 116 of that Act);
 - (c) a supported standard contract within the meaning given by the Renting Homes (Wales) Act 2016 (see section 143 of that Act);
 - (d) a lease under which the interest of the landlord belongs to Her Majesty in right of the Crown or to a government department or is held in trust for Her Majesty for the purposes of a government department;
 - (e) a lease granted to a person as a result of the exercise by a local housing authority within the meaning of the Housing (Wales) Act 2014 of its functions under Part 2 (homelessness) of that Act;
 - (f) a lease of a dwelling-house or part of a dwelling-house—
 - (i) granted on payment of a premium calculated by reference to a percentage of the value of the dwelling-house or part or of the cost of providing it, or

- (ii) under which the contract-holder (or the contract-holder's personal representatives) will or may be entitled to a sum calculated by reference, directly or indirectly, to the value of the dwelling-house or part.]

Textual Amendments

- F6** Words in [reg. 27C\(2\)](#) omitted (W.) (1.12.2022) by virtue of [The Renting Homes \(Wales\) Act 2016 \(Consequential Amendments to Secondary Legislation\) Regulations 2022 \(S.I. 2022/907\)](#), [reg. 1\(2\)](#), [Sch. 1 para. 26\(a\)](#)
- F7** [Reg. 27C\(7\)\(8\)](#) inserted (W.) (1.12.2022) by [The Renting Homes \(Wales\) Act 2016 \(Consequential Amendments to Secondary Legislation\) Regulations 2022 \(S.I. 2022/907\)](#), [reg. 1\(2\)](#), [Sch. 1 para. 26\(b\)](#)

What financial services are covered by this Part?

27D.—(1) In this Part “product” does not include a service provided in the course of carrying on a regulated activity within the meaning of section 22 of the Financial Services and Markets Act 2000, other than a service to which paragraph (2) applies.

(2) This paragraph applies to a service consisting of the provision of credit under an agreement which is a restricted-use credit agreement within paragraph (a) or (b) of the definition of that term in article 60L(1) of the Financial Services and Markets Act 2000 (Regulated Activities) Order 2001.

(3) But paragraph (2) does not apply to an agreement under which the obligation of the borrower to repay is secured by a legal or equitable mortgage on land (other than timeshare accommodation).

(4) In paragraph (3)—

“mortgage” includes a charge and (in Scotland) a heritable security;

“timeshare accommodation” means overnight accommodation which is the subject of a timeshare contract within the meaning of the Timeshare, Holiday Products, Resale and Exchange Contracts Regulations 2010.

(5) The fact that the supply of a product within regulation 2(1A) and (1B) may constitute an activity within article 39F (debt-collecting) of the Financial Services and Markets Act 2000 (Regulated Activities) Order 2001 does not prevent this Part from applying in relation to that supply.

When does the right to unwind apply to a business to consumer contract?

27E.—(1) A consumer has the right to unwind in respect of a business to consumer contract if the consumer indicates to the trader that the consumer rejects the product, and does so—

- (a) within the relevant period, and
- (b) at a time when the product is capable of being rejected.

(2) An indication under paragraph (1) may be something that the consumer says or does, but it must be clear.

(3) In paragraph (1)(a) “the relevant period” means the period of 90 days beginning with the later of—

- (a) the day on which the consumer enters into the contract, and
- (b) the relevant day.

(4) In this Part “the relevant day” means the day on which—

- (a) the goods are first delivered,
- (b) the performance of the service begins,

- (c) the digital content is first supplied,
 - (d) the lease begins, or
 - (e) the right is first exercisable,
- (as the case may be).
- (5) But in the case of a mixed contract, “the relevant day” means the latest of the days mentioned in paragraph (4) that is relevant to the contract.
- (6) In this Part “mixed contract” means a contract relating to a product which consists of any two or more of goods, a service, digital content, immoveable property or rights.
- (7) For the purposes of this Part, where the consumer’s access to digital content on a device requires its transmission to the device under arrangements initiated by the trader, the day on which the digital content is first provided is—
- (a) the day on which it reaches the device, or
 - (b) if earlier, the day on which it reaches another trader chosen by the consumer to supply, under a contract with the consumer, a service by which digital content reaches the device.
- (8) For the purposes of paragraph (1)(b), a product remains capable of being rejected only if—
- (a) the goods have not been fully consumed,
 - (b) the service has not been fully performed,
 - (c) the digital content has not been fully consumed,
 - (d) the lease has not expired, or
 - (e) the right has not been fully exercised,
- (as the case may be).
- (9) For the purposes of paragraph (8)—
- (a) goods have been fully consumed only if nothing is left of them, and
 - (b) digital content has been fully consumed only if the digital content was available to the consumer for a fixed period and that period has expired.
- (10) A consumer does not have the right to unwind in respect of a business to consumer contract if the consumer has exercised the right to a discount in respect of that contract and the same prohibited practice.

How does the right to unwind work in the case of a business to consumer contract?

27F.—(1) Where a consumer has the right to unwind in respect of a business to consumer contract—

- (a) the contract comes to an end so that the consumer and the trader are released from their obligations under it,
 - (b) the trader has a duty to give the consumer a refund (subject as follows), and
 - (c) if the contract was wholly or partly for the sale or supply of goods the consumer must make the goods available for collection by the trader.
- (2) The consumer’s entitlement to a refund works as follows.
- (3) To the extent that the consumer paid money under the contract, the consumer is entitled to receive back the same amount of money (but see paragraphs (7) to (10)).
- (4) To the extent that the consumer transferred anything else under the contract, the consumer is entitled to receive back the same amount of what the consumer transferred, unless paragraph (5) applies.

(5) To the extent that the consumer transferred under the contract something for which the same amount of the same thing cannot be substituted—

- (a) the consumer is entitled to receive back in its original state whatever the consumer transferred, or
- (b) if it cannot be given back in its original state, the consumer is entitled to be paid its market price as at the time when the product was rejected.

(6) There is no entitlement to a refund if none of paragraphs (3) to (5) applies.

(7) The consumer's entitlement to receive back the same amount of money as the consumer paid is qualified by paragraphs (8) to (10) if—

- (a) the contract was for the sale or supply of a product on a regular or continuous basis, and
- (b) the period beginning with the relevant day and ending with the day on which the consumer rejected the product exceeds one month.

(8) In that case the consumer is only entitled to receive back the amount (if any) found by deducting the market price, when the consumer rejected the product, of the product supplied up to that time from the amount the consumer paid for it.

(9) But paragraph (8) does not apply if it is not appropriate to apply that deduction having regard to—

- (a) the behaviour of the person who engaged in the prohibited practice, and
- (b) the impact of the practice on the consumer.

(10) Where the product supplied up to the time when the consumer rejected it consists wholly or partly of goods, their market price is only to be taken into account under paragraph (8) to the extent that they have been consumed.

How does the right to unwind work in the case of a consumer to business contract?

27G.—(1) A consumer who has a right to redress in respect of a consumer to business contract has the right to unwind in respect of that contract.

(2) Where paragraph (1) applies—

- (a) the consumer has the right to treat the contract as at an end so that the trader and the consumer are released from their obligations under it, and
- (b) the consumer has the right within paragraph (5) or (6).

(3) To treat the contract as at an end, the consumer must indicate to the trader that the contract is ended.

(4) An indication under paragraph (3) may be something that the consumer says or does, but it must be clear.

(5) If the trader is able to return the goods to the consumer in the condition they were in when sold by the consumer—

- (a) the consumer has a right to the return of the goods, and
- (b) the consumer must repay to the trader the amount (if any) that the trader has paid for the goods.

(6) If paragraph (5) does not apply, the consumer has a right to a payment from the trader of the amount (if any) by which the market price of the goods when the trader paid for them exceeds what the trader paid for them.

How does the right to unwind work if payments are demanded which are not due?

27H.—(1) A consumer has the right to unwind in respect of a consumer payment for a product within regulation 2(1A) and (1B) if the consumer was not required to make all or part of the payment.

- (2) Where paragraph (1) applies, the consumer has the right to receive back from the trader—
- (a) the same amount of money as the consumer paid to the trader, or
 - (b) in a case where the consumer was required to make part of the payment, an amount equal to the part of the payment the consumer was not required to make.

How does the right to a discount work?

27I.—(1) A consumer has the right to a discount in respect of a business to consumer contract if—

- (a) the consumer has made one or more payments for the product to the trader or one or more payments under the contract have not been made, and
- (b) the consumer has not exercised the right to unwind in respect of the contract.

(2) If the consumer has made one or more payments, the consumer has the right to receive back from the trader the relevant percentage of the payment or payments.

(3) If one or more payments have not been made, the consumer has the right—

- (a) to reduce by the relevant percentage as many of those payments as is appropriate having regard to the seriousness of the prohibited practice, or
- (b) in a case within paragraph (6), to reduce all of those payments by the relevant percentage.

(4) Subject to paragraph (6), the relevant percentage is as follows—

- (a) if the prohibited practice is more than minor, it is 25%,
- (b) if the prohibited practice is significant, it is 50%,
- (c) if the prohibited practice is serious, it is 75%, and
- (d) if the prohibited practice is very serious, it is 100%.

(5) The seriousness of the prohibited practice is to be assessed by reference to—

- (a) the behaviour of the person who engaged in the practice,
- (b) the impact of the practice on the consumer, and
- (c) the time that has elapsed since the prohibited practice took place.

(6) [F8Paragraph (4)] does not apply if—

- (a) the amount payable for the product under the contract exceeds £5,000,
- (b) the market price of the product, at the time that the consumer entered into the contract, is lower than the amount payable for it under the contract, and
- (c) there is clear evidence of the difference between the market price of the product and the amount payable for it under the contract.

(7) In such a case, the relevant percentage is the percentage difference between the market price of the product and the amount payable for it under the contract.

(8) The application of this regulation does not affect any of the other rights and liabilities under the contract.

Textual Amendments

- F8** Words in reg. 27I(6) substituted (with application in accordance with reg. 1(2) of the amending S.I.) by [The Consumer Contracts \(Amendment\) Regulations 2015 \(S.I. 2015/1629\)](#), regs. 1(1), **9(2)**

How does the right to damages work?

- 27J.**—(1) Subject as follows, a consumer has the right to damages if the consumer—
- (a) has incurred financial loss which the consumer would not have incurred if the prohibited practice in question had not taken place, or
 - (b) has suffered alarm, distress or physical inconvenience or discomfort which the consumer would not have suffered if the prohibited practice in question had not taken place.
- (2) The right to damages is the right to be paid damages by the trader for the loss or the alarm, distress or physical inconvenience or discomfort in question.
- (3) The right to be paid damages for financial loss does not include the right to be paid damages in respect of the difference between the market price of a product and the amount payable for it under a contract.
- (4) The right to be paid damages under this regulation is a right to be paid only damages in respect of loss that was reasonably foreseeable at the time of the prohibited practice.
- (5) A consumer does not have the right to damages if the trader proves that—
- (a) the occurrence of the prohibited practice in question was due to—
 - (i) a mistake,
 - (ii) reliance on information supplied to the trader by another person,
 - (iii) the act or default of a person other than the trader,
 - (iv) an accident, or
 - (v) another cause beyond the trader's control, and
 - (b) the trader took all reasonable precautions and exercised all due diligence to avoid the occurrence of the prohibited practice.

How can a consumer enforce the rights to redress?

- 27K.**—(1) A consumer with a right to redress under this Part may bring a claim in civil proceedings to enforce that right.
- (2) In Scotland, proceedings to enforce the right to unwind may be brought before the sheriff or in the Court of Session.
- (3) Paragraph (4) applies if in proceedings under this regulation the consumer establishes that the consumer has—
- (a) the right to unwind,
 - (b) the right to a discount, or
 - (c) the right to damages.
- (4) The court must make an order that gives effect to—
- (a) that right, and
 - (b) any associated obligations of the consumer under this Part.
- (5) The Limitation Act 1980 applies to a claim under this regulation in England and Wales as if it were an action founded on simple contract.

(6) The Limitation (Northern Ireland) Order 1989 applies to a claim under this regulation in Northern Ireland as if it were an action founded on simple contract.

How does this Part relate to the existing law?

27L.—(1) Nothing in this Part affects the ability of a consumer to make a claim under a rule of law or equity, or under an enactment, in respect of conduct constituting a prohibited practice.

(2) But a consumer may not—

- (a) make a claim to be compensated under a rule of law or equity, or under an enactment, in respect of such conduct if the consumer has been compensated under this Part in respect of the conduct, or
- (b) make a claim to be compensated under this Part in respect of such conduct if the consumer has been compensated under a rule of law or equity, or under an enactment, in respect of the conduct.

(3) In this regulation “enactment” includes—

- (a) an enactment contained in subordinate legislation within the meaning of the Interpretation Act 1978,
- (b) an enactment contained in, or in an instrument made under, a Measure or Act of the National Assembly for Wales,
- (c) an enactment contained in, or in an instrument made under, an Act of the Scottish Parliament, and
- (d) an enactment contained in, or in an instrument made under, Northern Ireland legislation.]]

^{F1}PART 5

SUPPLEMENTARY

Inertia selling

27M.

Crown

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Validity of agreements

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Amendments, repeals and transitional and saving provisions

30.

Department for Business, Enterprise &
Regulatory Reform

Gareth Thomas
Parliamentary Under Secretary of State for Trade
and Consumer Affairs

^{F1}SCHEDULE 1 Regulation 3(4)(d)

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^{F1}SCHEDULE 2 Regulation 30(1)

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^{F1}SCHEDULE 3 Regulation 30(2)

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^{F1}SCHEDULE 4 Regulation 30(3)

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EXPLANATORY NOTE

(This note is not part of the Regulations)

These Regulations implement Directive [2005/29/EC](#) of the European Parliament and of the Council concerning unfair business-to-consumer commercial practices (OJ No L 149, 11.6.2005, p22) (“the Directive”). These Regulations also implement article 6.2 of Directive [1999/44/EC](#) of the European Parliament and of the Council on certain aspects of the sale of consumer goods and associated guarantees (OJ No L171, 7.7.1999, p12) (“the Sale of Goods Directive”).

Part 2 sets out the prohibition on unfair commercial practices. The prohibition relates to commercial practices that contravene the requirements of professional diligence, misleading actions, misleading omissions, aggressive commercial practices and commercial practices of the type specified in Schedule 1. Part 2 also imposes a prohibition on the promotion of unfair commercial practices by persons responsible for codes of conduct for traders. The prohibitions will be enforceable through the procedure for the enforcement of Community infringements in Part 8 of the Enterprise Act 2002.

Part 3 provides that, with limited exceptions, breaches of the prohibition on unfair commercial practices will be criminal offences. It also provides, in relation to the offences, for defences of due diligence and innocent publication of advertisements.

Part 4 places a duty to enforce the Regulations on the OFT, local weights and measures authorities and the Department of Enterprise, Trade and Investment in Northern Ireland. These bodies are also given powers to investigate whether there has been a breach of the Regulations including a power to make test purchases and powers to enter premises with or without a warrant. Regulation 26 amends Schedule 13 to the Enterprise Act 2002 so that contravention of the Directive can be enforced under that Act as Community infringements. Regulation 27 inserts section 218A into the

Changes to legislation: There are currently no known outstanding effects for the The Consumer Protection from Unfair Trading Regulations 2008. (See end of Document for details)

Act which provides for traders to substantiate claims where an application is made under the Act in relation to a Community infringement involving a contravention of the Directive.

Schedule 2 makes amendments to other enactments in order to ensure that enactments do not provide for requirements or prohibitions on commercial practices which exceed the level permitted by the Directive. The Schedule also makes amendments to accommodate the Directive and these Regulations. In addition the Schedule makes amendments to accommodate Directive [2006/114/EC](#) of the European Parliament and the Council concerning misleading and comparative advertising (OJ No L. 376, 27.12.2006, p21) and the Business Protection from Misleading Marketing Regulations 2008 (S.I. 2008/1276) which implement that Directive. Paragraph 97 of Schedule 2 amends the Sale and Supply of Goods to Consumers Regulations 2002 in order to implement article 6.2 of the Sale of Goods Directive which was implemented by article 4 of the Consumer Transactions (Restrictions on Statements) Order 1976. This Order no longer has effect as a result of the repeal of section 10(2) of the Enterprise Act 2002 in paragraph 69 as a result of which section 22 of the Fair Trading Act 1973, under which the Order was made, is no longer saved.

Schedule 3 contains transitional and saving provisions.

Schedule 4 contains repeals and revocations.

A transposition note and an impact assessment of the effect that this instrument will have on the costs to business and the voluntary sector are available from the BERR website (www.berr.gov.uk). They are also annexed to the Explanatory Memorandum which is available alongside the instrument on the OPSI website (www.opsi.gov.uk). Copies have also been placed in the Libraries of both Houses of Parliament.

Changes to legislation:

There are currently no known outstanding effects for the The Consumer Protection from Unfair Trading Regulations 2008.